

Natthi Prasad v. State of U.P. and Another

High Court of Judicature at Allahabad · Single Judge · 2 September 2025 · Application U/S 528 BNSS No. 10943 of 2025 · **Section 528 BNSS application dismissed; cognizance and ss.409/420 proceedings not quashed**

HEADNOTE

A section 528 BNSS application to quash cognizance and trial of an electricity-department Office Assistant for embezzlement under sections 409 and 420 IPC, after a departmental enquiry and charge-sheet, is dismissed. Appreciation of evidence is for the trial court. Inherent power under section 482 Cr.P.C. is used sparingly at the pre-trial stage and not to decide disputed questions of fact or the accused's defence. Where the FIR, witness statements and charge-sheet disclose a prima facie offence of embezzlement of Rs. 1,45,00,775, no ground for quashing is made out. A 2022 Division Bench listing order in the applicant's earlier FIR-challenge, recording a plea that irregularity in permanent disconnection was attributable to the Executive Engineer under the Electricity Supply Code, 2005, was noted; this Court did not construe the Code.

FACTUAL SUMMARY

Natthi Prasad served as Office Assistant III at Electricity Distribution Division 1st, Saharanpur from 30 June 1998 to 4 August 2016, then at Electricity Distribution Division Devband. He was suspended on 24 September 2016, attached to the Superintending Engineer, Electricity Distribution Circle, Saharanpur, and reinstated on 16 June 2017. After a departmental enquiry, the Executive Engineer of the Electricity Department lodged FIR Case Crime No. 0085 of 2022 at Police Station Kotwali Nagar, Saharanpur, under sections 409 and 420 IPC, alleging embezzlement of Rs. 1,45,00,775.

He had challenged that FIR in Criminal Misc. Writ Petition No. 4363 of 2022. On 22 April 2022 a Division Bench recorded his plea that irregularity in permanent disconnection could at best be attributed to the Executive Engineer, who exercised that authority under the Electricity Supply Code, 2005, and directed that no coercive action be taken subject to cooperation in investigation. After charge-sheet, the Chief Judicial Magistrate, Saharanpur took cognizance on 13 February 2025 in Criminal Case No. 1781 of 2025 (State v. Natthi Prasad). He applied under section 528 BNSS to quash that cognizance order and the entire proceeding.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::embezzlement-quashing-electricity-employee

528 BNSS quashing of a departmental-enquiry embezzlement prosecution is refused where a prima facie case is disclosed; disputed defences are for trial

QUESTION

Can section 528 BNSS (s.482 Cr.P.C. analogue) quash cognizance and trial of an electricity-department Office Assistant for embezzlement under sections 409 and 420 IPC where a departmental enquiry and charge-sheet are said to make out a prima facie case?

HOLDING

No. The Court held that many grounds taken related to disputed questions of fact; appreciation of evidence is a function of the trial court and cannot be assumed under section 482 Cr.P.C. so as to end the trial. Inherent power at the pre-trial stage is used sparingly, only where there is a legal bar to the proceeding or the FIR and charge-sheet, taken at face value, do not disclose an offence. Disputed facts and the accused's defence cannot be considered at that stage. Applying R.P. Kapur, Manik B., Bhajan Lal, P.P. Sharma and Zandu Pharmaceutical, no ground for quashing was made out. The FIR and witness statements supported the prosecution case of embezzlement of Rs. 1,45,00,775 after departmental enquiry; the Investigating Officer had since submitted a charge-sheet; a prima facie offence was made out. The application of Natthi Prasad was dismissed. ¶ 5-7

FLAG Not a Supply Code construction. The Code appears only in the quoted 22.04.2022 Division Bench listing order in Criminal Misc. Writ Petition No. 4363 of 2022 (irregularity in permanent disconnection attributed to the Executive

Engineer). Source PDF also contains listing/adjournment orders from 11.04.2025 to 26.08.2025 (including an amendment allowed on 20.08.2025); the operative dismissal is 02.09.2025. Paragraph 5 contains a garbled sentence mixing the applicant's abuse-of-process prayer with the 482-sparingly principle; the operative result is dismissal.

PRINCIPLE TAGS

section-482-sparingly-at-pre-trial-stage Section 528 BNSS treated as the inherent-power vehicle. The Court restated that s.482 Cr.P.C. at the pre-trial stage is used sparingly, not to appreciate evidence or try disputed defences, and dismissed the application because the FIR, statements and charge-sheet disclosed a prima facie ss.409/420 embezzlement case after departmental enquiry. Same cluster as SCJ-173, SCJ-142. Lead authorities: *R.P. Kapur v. State of Punjab*, *Manik B. v. Kadapala Sreyes Reddy*, *State of Haryana v. Bhajan Lal*, *State of Bihar v. P.P. Sharma*, *Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq*. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GUILT UNDER SECTIONS 409 AND 420 IPC AND WHETHER THE APPLICANT EMBEZZLED RS. 1,45,00,775

Left to trial. The Court held that appreciation of evidence and disputed facts (posting, co-accused, adequacy of investigation) cannot be decided at the pre-trial 528/482 stage. ¶ 3, 5, 7

NOT DECIDED — WHETHER IRREGULARITY IN PERMANENT DISCONNECTION IS ATTRIBUTABLE ONLY TO THE EXECUTIVE ENGINEER UNDER THE ELECTRICITY SUPPLY CODE, 2005

Recorded as a plea in the quoted 22.04.2022 Division Bench listing order in the applicant's earlier FIR-challenge. This Court did not construe the Code or decide that attribution. ¶ 4

NOT DECIDED — WHETHER OTHER OFFICIALS INVOLVED IN THE ALLEGED EMBEZZLEMENT OUGHT TO HAVE BEEN MADE ACCUSED

Raised by the applicant; not decided. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>R.P. Kapur v. State of Punjab</i> AIR 1960 SC 866 Supreme Court	Categories in which the High Court's inherent power may be used to quash criminal proceedings; power at the pre-trial stage is used sparingly.	Cited with the other Apex Court cases as the light in which no ground for quashing was made out. ¶ 6	Court	Followed
<i>Manik B. v. Kadapala Sreyes Reddy</i> 2023 Live Law (SC) 642 Supreme Court	Cited in the same catena on the limited scope of inherent-power quashing at the pre-trial stage (this Court does not restate a separate holding).	Cited with <i>R.P. Kapur</i> , <i>Bhajan Lal</i> , <i>P.P. Sharma</i> and <i>Zandu Pharmaceutical</i> ; no independent extract. ¶ 6	Court	Followed
<i>State of Haryana v. Bhajan Lal</i> 1992 SCC (Cr.) 426 Supreme Court	Illustrative categories for quashing; interference is not warranted where the FIR/charge-sheet discloses a cognizable offence.	Cited with the other Apex Court cases as the light in which no ground for quashing was made out. ¶ 6	Court	Followed
<i>State of Bihar v. P.P. Sharma</i> 1992 SCC (Cr.) 192 Supreme Court	Limited scope of inherent-power quashing; disputed factual defences are for trial.	Cited with the other Apex Court cases as the light in which no ground for quashing was made out. ¶ 6	Court	Followed
<i>Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq</i> 2005 SCC (Cr.) 283 Supreme Court	At the quashing stage only a prima facie case is examined (para 10 as cited); disputed facts go to trial.	Cited (para 10) with the other Apex Court cases as the light in which no ground for quashing was made out. ¶ 6	Court	Followed

